

Calendar Line 1

Case Name: Tai Le et al. v. Vinh Hong

Case No.: 25CV468482

This is an action for constructive and retaliatory eviction brought by plaintiffs Tai Le, individually and as guardian ad litem for minors Thy Le and Thao Le (Plaintiffs) against Vinh Hong (Hong) and Doe defendants.

Plaintiffs' original and still operative complaint alleges nine causes of action: (1) violations of the San Jose Municipal Code; (2) unfair business practices; (3) breach of the implied warranty of habitability; (4) breach of the covenant of quiet enjoyment; (5) negligence; (6) negligent infliction of emotional distress; (7) constructive eviction; (8) retaliation (Civ. Code, § 1942.5); and (9) negligence (alleged by minor Thy Le only). There are no exhibits attached to the complaint.

At issue is Hong's motion to strike portions of the complaint, which Plaintiffs oppose.

Legal Standard for Motions to Strike

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) A motion to strike is not a "procedural 'line item veto' for the civil defendant." (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 (*Turman*).) California Rules of Court, rule 3.1322(a) requires that "[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively." (Cal. Rules of Court, rule 3.1322(a).)

As with a demurrer, the court cannot consider extrinsic evidence in ruling on a motion to strike. The court has considered the declaration from Hong counsel James Huan Ly only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the declaration from Plaintiffs' counsel Jake Huynh, or the exhibit attached to the opposition.

Discussion

Hong moves to strike the request for "punitive damages" in paragraph 66 of the complaint (part of the eighth cause of action) and the request for "punitive damages pursuant to Civil Code § 3294 against Defendants and/or as otherwise allowed by law" in paragraph 7 of

the complaint's prayer for relief. (See Hong's notice of motion at p. 2:2-6.) Those are the only references to punitive damages in the complaint. The sole basis for the request for punitive damages in the prayer is therefore the eighth cause of action for violation of Civil Code section 1942.5.

Civil Code section 1942.5 authorizes punitive damages "in an amount of not less than one hundred dollars (\$100) nor more than two thousand dollars (\$2,000) for each retaliatory act where the lessor or agent has been guilty of fraud, oppression, or malice with respect to that act." (Civ. Code § 1942.5, subd. (h)(2).) "In order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. These statutory elements include allegations that the defendant has been guilty of oppression, fraud, or malice. 'Malice' is defined in the statute as conduct 'intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.' 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. 'Fraud' is 'an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.'" (*Turman, supra*, 191 Cal.App.4th at p. 63, internal citations omitted.)

Paragraph 66 of the complaint alleges, "Defendant undertook the retaliatory acts alleged herein fraudulently, oppressively, and maliciously and in conscious disregard to Plaintiffs' rights. Plaintiffs are, thus, entitled to recover statutory damages pursuant to Civil Code § 1942.5, and to recover punitive damages from Defendant in an amount according to proof." Merely repeating terms from the statute, without more, is insufficient. A complaint must include specific factual allegations showing how the defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.) Punitive damages may not be pleaded generally.

Hong's motion to strike the reference to punitive damages in paragraph 66 and the entirety of paragraph 7 of the complaint's prayer is granted.

As with a demurrer, a plaintiff bears the burden of demonstrating that an amendment could cure the defect identified by a motion to strike. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 (*Shaeffer*).) Plaintiffs' opposition does not meet this burden. It asserts that the motion should be denied, and makes only a generic request for leave to amend if there are any "perceived defects." The opposition also incorrectly asserts that Plaintiffs can recover punitive damages under the first (violation of certain sections of the San Jose Municipal Code), third (breach of the implied warranty of habitability), and fifth causes of action (negligence), as well as the eighth. While that may have been true in the abstract before the case was filed, Plaintiffs are bound by their pleading. And the sole request for punitive damages is in paragraph 66 of the eighth cause of action.

Because this is the first pleading challenge to be heard in this case, the court will grant Plaintiffs leave to amend the request for punitive damages in paragraph 66 of the eighth cause of action. The court does not grant leave to add any new parties or causes of action, and also

does not grant leave to add any requests for punitive damages as to other existing causes of action. If Plaintiffs wish to request punitive damages as part of any cause of action other than the eighth, that will require a noticed motion for leave to amend.

Conclusion

Defendant Hong's motion to strike the request for punitive damages in paragraph 66 of the complaint and to strike paragraph 7 of the complaint's prayer in its entirety is GRANTED WITH LEAVE TO AMEND. Any amended pleading must be filed and served no later than July 10, 2026.

The court will prepare the order.

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Calendar Line 2

Case Name: Alan Pineda v. Mike Counsil Plumbing LLC

Case No.: 25CV474386

Specially appearing defendant Mike Counsil Plumbing LLC moves to quash service of summons. Notice is proper and the motion is opposed by plaintiff Alan Pineda.

Plaintiff filed the original and still operative complaint in September 2025, alleging the following causes of action against Defendant: (1) breach of contract; (2) wrongful termination; (3) retaliation; (4) false advertising and misrepresentation; (5) failure to provide written offer letter; (6) constructive discharge; and (7) lost wages.

Legal Standard

A motion to quash under Code of Civil Procedure section 418.10, subdivision (a)(1) contests personal jurisdiction where the statutory requirements for proper service are not met. (*Stancil v. Superior Court* (2021) 11 Cal.5th 381, 390.)

When a defendant contends that service failed to place them within the trial court's jurisdiction, the plaintiff must provide evidence of effective service. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 387.) A proof of service declaration will create a presumption of proper service if the declaration complies with all statutory requirements. And that presumption may be rebutted by contrary evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1163 (*Lebel*); *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 941, fn. 6.)

A proof of service must identify the time, place, and manner of service, in addition to the individual served and the individual's title or authority to accept service. (Code Civ. Proc., § 417.70, subd. (a).) Service on a corporation requires delivery of the summons and complaint to an individual who may be served on behalf of the corporation (e.g., an agent for service of process or a general manager). (Code Civ. Proc., § 416.10.)

Discussion

Defendant argues that service was improper because (1) the filed proof of service is incomplete; and (2) service was rendered on an individual not authorized to receive service of process.

Plaintiff filed an affidavit of service in October 2025 that was not on the mandatory proof of service of summons form (POS-010). The clerk's office accepted the document for filing, but attached a civil filing rejection letter indicating that a "Proof of Service Summons requires mandatory form POS-010." Plaintiff filed the mandatory POS-010 form in November 2025. That November filing identifies the documents served, but omits the date, time, and manner of service. It further omits the identity of the individual served and that person's authority to accept service. (The court takes judicial notice of these court records on its own motion. (Evid. Code, § 452, subd. (d).)) The proof of service is defective under Code of Civil Procedure section 416.10. It therefore does not create a rebuttable presumption of proper service. (*Lebel, supra*, 210 Cal.App.4th at p. 1163.)

Reviewing the court filings and evidence submitted with defendant's motion to quash, the court cannot conclude proper service occurred. Defendant provides the declaration of Katherine Rios. Rios declares she is the individual who was served. Rios declares she informed the process server that Loza was not in the office; Rios never identified herself as Loza. (Declaration of Katherine Rios, ¶¶ 3, 6.) Rios does not have authority to accept service as Defendant's receptionist or call center representative. (*Id.* at ¶ 1; Domingue Decl., ¶ 6; see Code Civ. Proc., § 416.10, subd. (b).) The October 2025 affidavit of service signed by Luis Barragan does not establish that an authorized individual was served. The affidavit merely states, "Walked in to the front desk and asked for Patty Loza and was greeted with yes and I said I have legal documents for the business Mike counsil plumbing and said you've been served." (Affidavit of Service, filed 10/23/2025.) Plaintiff declares that that he retained a registered process server who "personally served Patty Loza at Defendant's business address." (Plaintiff dec., filed 5/26/26, ¶ 3.) But plaintiff's declaration is not based on personal knowledge because there is no indication he was personally present at the time of service. (*Parsons v. Superior Court* (2007) 149 Cal.App.4th Supp. 1, 7 ["The jurisdictional facts must be proved by competent evidence at the hearing on the motion to quash."]))

Plaintiff argues defendant waived any service defect by filing the instant motion to quash. But a special appearance "does not confer jurisdiction on the court for any purpose other than determining the question of jurisdiction over the person." (*In re Marriage of Obrecht* (2016) 245 Cal.App.4th 1, 8, citation omitted.) To the extent Plaintiff asserts that Defendant's filing of the declaration of demurring or moving party in support of automatic extension constitutes a general appearance, Plaintiff cites no authority for that proposition. (*Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [arguments not supported by reasoned argument and legal authority are forfeited].) And actual notice of an action does not cure defective service of a summons and complaint. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 414.)

Conclusion

Defendant's motion to quash service of summons is GRANTED. The parties are encouraged to meet and confer to facilitate proper service. The currently scheduled order to show cause hearing regarding Plaintiff's failure to appear, scheduled for August 13, 2026, at 10:00 a.m. in Department 10, will also be an order to show cause hearing regarding Plaintiff's failure to serve Defendant. The court will prepare the order.

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Calendar Lines 4 through 6**Case Name:** Austin Cortez v. David Lee**Case No.:** 25CV465227

At issue are three motions to compel discovery by plaintiff Austin Cortez against defendant David Lee: a motion to compel further responses to special interrogatories, set one; a motion to compel further responses to a request for the production of documents, set one; and a motion to compel further responses to form interrogatories, set one. Notice is proper and the motions are opposed by defendant. The case is a negligence action related to an automobile accident.

It appears these motions could have been largely avoided had plaintiff undertaken greater efforts to meet and confer before filing the motions. The extent of plaintiff's meet and confer efforts appears to have been a single meet and confer letter sent to defense counsel. Defense counsel indicates he did not become aware of that letter until after the motions to compel were filed. Plaintiff's meet and confer efforts were deficient. (Code Civ. Proc., § 2016.040.) For this reason, plaintiff's requests for sanctions related to the motions are DENIED.

Special Interrogatories, Set One

The motion to compel related to special interrogatory Nos. 17, 18, 19, 20, 21, 26, and 27. Defendant supplemented his responses after the motion to compel was filed, and the motion is now largely moot. Plaintiff's reply focuses on a single special interrogatory that he argues remains deficient: No. 17. That interrogatory asks defendant to "State where defendant purchased the subject grill that fell from the vehicle defendant was driving at the time of the incident." (Some capitalization omitted.) Defendant's amended response is, "Defendant does not call where his purchase the subject grill." Plaintiff argues that response is unintelligible. The court agrees that, without clarification, the response is not clear. It is possible defendant meant to state: "Defendant does not *recall* where *he purchased* the subject grill." The response also does not indicate whether defendant undertook the "reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations" required by Code of Civil Procedure section 2030.220.

The motion is GRANTED IN PART. Defendant is ordered to clarify its response to special interrogatory No. 17 no later than July 9, 2026, consistent with the foregoing. Plaintiff's request for sanctions is denied.

Request for Production, Set One

The motion to compel related to a single request for production—No. 18—which sought documents about ownership of the grill that fell from defendant's vehicle. Plaintiff's reply acknowledges that defendant served code compliant amended responses after plaintiff filed the motion. The motion is DENIED AS MOOT. Plaintiff's request for sanctions is denied.

Form Interrogatories, Set One

The motion to compel related to form interrogatory Nos. 10.2, 12.6, 15.1, and 16.10. Defendant amended his responses after the motion was filed, which appears to have address the deficiency in the original response to interrogatory No. 16.10. Plaintiff's reply argues the amended responses to the remaining three form interrogatories are deficient.

Interrogatory No. 10.2 asks about any disabilities defendant had immediately before the incident. Defendant's amended response states, "Defendant is [*sic*] not have any physical, mental, or emotional disabilities immediately after the incident." (Some capitalization omitted.) That is not responsive. Defendant must provide a further response that answers the question posed.

Interrogatory No. 12.6 asks about whether any reports were made by any person after the incident. Defendant's amended response states, in relevant part, "Defendant is not aware of any non-privilege [*sic*] reports made by any person concerning the incident." (Some capitalization omitted.) That response is deficient. Defendant must provide a "Yes" or "No" response. To the extent reports exist that are privileged, defendant must state as much (including the nature of the privilege asserted).

Interrogatory No. 15.1 asks defendant to identify all facts upon which he bases a denial or special or affirmative defense. Defendant's amended response states, in relevant part: "Defendant is not asserting any affirmative defenses at this time. Defendant reserves the right to amend this response." That conditional response is both deficient and inconsistent with defendant's answer to the complaint, which asserts nine affirmative defenses. Defendant must provide an amended response. To the extent defendant is now waiving all affirmative defenses, he must state as much unequivocally.

The motion is GRANTED IN PART. Defendant must provide further responses to form interrogatory Nos. 10.2, 12.6, and 15.1 no later than July 9, 2026, consistent with the foregoing. Plaintiff's request for sanctions is denied.

The court will prepare the order.

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Calendar Line 8**Case Name:** Gita Patel v. Sunil Garg et al.**Case No.:** 25CV457167

Motion for approval of attorney fees and costs, filed by defendants Select Portfolio Servicing, Inc.; U.S. Bank Trust National Association, not in its individual capacity but solely as Collateral Trust Trustee of Firstkey Master Funding 2021-A Collateral Trust (erroneously named as “U.S. Bank Trust National Association Collateral Trustee of Firstkey Master Funding 2021-A”); Firstkey Mortgage, LLC; and Randhir Gandhi (collectively, defendants). Notice is proper and the motion is opposed by plaintiff Gita Patel.

Defendants filed their motion in October 2025, requesting \$42,854.50 in attorney fees and \$3,658.85 in costs. That motion is supported by a memorandum of points and authorities; a declaration by counsel with exhibits; and a request for judicial notice. Defendants did not file a memorandum of costs, which is required by California Rules of Court, rule 3.1700(a)(1). The court will not approve any claimed costs. (*Evleshin v. Meyer* (2025) 115 Cal.App.5th 1021, 1047.) Defendants filed an unauthorized “supplemental declaration” of counsel in February 2026 without leave of court, which seeks to add an additional \$46,513.35 to its pending motion for attorney fees and costs (apparently related to attorney fees and costs incurred in a related federal bankruptcy court proceeding). The court will not consider this unauthorized and procedurally improper supplement. The court takes no position on whether those other fees and costs may be added to the loan balance.

The recorded deed of trust between Gita Patel and original lender Countrywide Bank includes two sections relevant to defendants’ motion. Section 9, titled Protection of Lender’s Interest in the Property and Rights Under this Security Instrument provides, in relevant part: “If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender’s interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then *Lender may do and pay for whatever is reasonable or appropriate to protect Lender’s interest in the Property and rights under this Security Instrument*, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. *Lender’s actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this-Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys’ fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. ... [¶] Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument.* These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.” (Defendants’ RJN, filed 10/13/25, exh. 1, italics added.) The court takes judicial notice of the recorded deed of trust and the recorded assignments of deed of trust (exhibits one through four of defendants’ request for judicial notice). (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924, fn. 1; Evid. Code, § 452, subds. (c), (h).)

Section 22 of the deed of trust, titled Acceleration, Remedies, provides in relevant part: “Lender shall give notice to Borrower prior to acceleration following Borrower’s breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section

18 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. *Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 22, including, but not limited to, reasonable attorneys' fees and costs of title evidence.*" (Defendants' RJN, filed 10/13/25, exh. 1, italics added, bold omitted.)

Defendants move for court approval of attorney fees that they intend to add to plaintiff's promissory note obligation. (Citing Civ. Code § 1717; *Chacker v. JPMorgan Chase Bank, N.A.* (2018) 27 Cal.App.5th 351, 359 (*Chacker*) [reversing order awarding attorney fees; remanding "for the entry of a new order authorizing this amount to be added to the outstanding balance plaintiff owes as the result of her default on the promissory note".]) The *Chacker* court reviewed a case with similarly situated parties and a functionally identical attorney fee clause in a deed of trust. The court interpreted the deed of trust to "permit attorney fees to be added to the borrower's promissory note obligation." (*Id.* at p. 357.) The court agrees that defendants are entitled to added reasonable attorney fees to plaintiff's promissory note obligation.

Turning to the reasonableness of the attorney fees requested in defendants' original moving papers, defendants request approval of \$42,854.50 in attorney fees. The request is supported by detailed fee invoices. (Exh. O to 10/13/25 Ghomashchi dec. ISO fee motion.) The court finds the attorneys' rates, which range from \$295 to \$425 per hour, to be well within the range of attorney fee rates for attorneys with similar experience. The court also finds the number of hours spent on this case to be reasonable. Among other things, plaintiff filed an unusually large number of ex parte applications in this matter. The vast majority of them were denied. Many repeated arguments that had been considered and rejected in previous applications. And all required responses from defendants' attorneys. The court will therefore approve the \$42,854.50 in attorney fees requested in defendants' original moving papers.

Plaintiff's arguments in opposition are unpersuasive. As already discussed, the court disagrees with plaintiff's argument that the claimed fees are unreasonable. Many of plaintiff's arguments attempt to reargue the merits of plaintiff's action, such as the argument that defendants do not hold the beneficial interest to the note. Those arguments are irrelevant to defendants' attorney fee motion, and are contradicted by the recorded documents of which the court has taken judicial notice. (See exh. 4 to defendants' 10/13/25 RJN ISO fee motion [corporate assignment of deed of trust to defendant U.S. Bank Trust National Association, not in its individual capacity but solely as Collateral Trust Trustee of Firstkey Master Funding 2021-A Collateral Trust].) Plaintiff argues defendants are judicially estopped from the claimed fees because their proof of claim in the federal court bankruptcy proceedings was limited to attorney fees totaling \$3,597.97. (Opposition, p. 7.) But the bankruptcy court's October 8, 2025 order granting relief from automatic stay authorizes a "motion for attorneys' fees and costs in California Superior Court for the County of Santa Clara, Case Number 25CV457167," without any limitation on the amount of fees claimed. (Exh. N to 10/13/25 Ghomashchi dec.

ISO fee motion.) The court takes judicial notice of that court record on its own motion. (Evid. Code, § 452, subd. (d).) Judicial estoppel does bar defendants' claim.

Defendants' motion that \$42,854.50 in attorney fees be added to the balance plaintiff owes as the result of her default on the promissory note is APPROVED. The court will prepare the order.

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